

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2026PRTR059293: IN RE THE NEAL E MC CLURE AND JOANNA R MC CLURE
FAMILY TRUST DATED AUGUST 27 1998**

06/24/2026 in Department J6

Demurrer to Petitioner Noelle McClure Leland's Petition for Damages and Orders

The Court notes that Petitioner Noelle Leland filed an amended petition on 6/12/26. The amended petition was not filed within nine court days of this hearing date and thus was unauthorized. (Code Civ. Proc., §§ 472, 1005, subd. (b).) The Court will order the court clerk to strike the amended petition from the record.

The Court will grant Respondents' request for judicial notice re the death certificate for Joanna McClure insofar as the fact and date of death. (Evid. Code, § 452, subd. (c); *People v. Terry* (1974) 38 Cal.App.3d 432, 439-440.) The Court will grant the request re the probate petition filed in the Williamson Chancery Court in Tennessee, insofar as the fact that such a petition was filed. (Evid. Code, § 452, subd. (d).) The Court will deny the request re the email from the APS in Tennessee. The request does not establish that the APS in Tennessee is an agency of that state, and the Court declines to assume this fact.

The Court intends to sustain the demurrer as follows:

1. 1st COA for Financial Elder Abuse. Sustain.
2. 2d COA for order under Probate Code section 259. Sustain
3. 3d COA for Removal of Trustee and Appointment of Successor Trustee. Sustain
4. 4th COA for Accounting. Sustain.

The Court will grant Petitioner leave to amend the existing causes of action. The first amended petition to be served and filed by 7/6/26.